

**25STCV17330 25STCV17330**

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-08-28

Motion: PETITIONER GREAT AMERICAN INSURANCE COMPANY'S MOTION TO INTERVENE

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Case Number: 25STCV17330 Hearing Date: August 28, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

JACKIE

CAMPBELL, ADAM RUSSELL, BRUCE FOLLINGS, MATHEW PALACIO, and JAMES ERDMIER,

Plaintiffs,

vs.

ST. GEORGE AFFORDABLE HOUSING LIMITED PARTNERSHIP, a

California limited partnership, SRHT PROPERTY MANAGEMENT COMPANY, a

California corporation, and DOES 1 through 30, inclusive,

Defendants.

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CASE

NO.: 25STCV17330

[TENTATIVE] ORDER RE: PETITIONER

GREAT AMERICAN INSURANCE COMPANY'S MOTION TO INTERVENE

Dept. 733

8:30 a.m.

August 28, 2026

I.

INTRODUCTION

This case arises

from alleged habitability issues at residential property located at 115 E 3rd St., Los Angeles, CA 90013 (hereinafter "Subject Property") during Plaintiffs' tenancy.

On June 16, 2025,

Plaintiffs Jackie Campbell, Adam Russell, Bruce Follings, Mathew Palacio, and James Erdmier ("Plaintiffs") filed a complaint against Defendants St. George Affordable Housing Limited Partnership ("St. George") and SRHT Property Management Company ("SRHT") ("Defendants"), alleging causes of action for (1) Breach of Contract/Covenant of Quiet Enjoyment/Warranty of Habitability, (2) Tortious Breach of the Implied Warranty of Habitability, (3) Negligence, (4) Violation of California Civil Code section 1942.4, (5) Violation of Unfair

Business Practices, (6) Tenant Harassment, and (7) Constructive Eviction.

On July 31, 2026,  
third-party Great American Insurance Company ("Great American") filed the  
instant motion for leave to intervene.

On August 17,  
2026, Plaintiffs filed an opposition.

On August 21,  
2026, Great American filed a reply.

II.

## LEGAL STANDARD

Pursuant to Code  
of Civil Procedure section 387, subdivision (d)(1)(B), the court must allow a  
nonparty to intervene in an action upon timely application if "[t]he person  
seeking intervention claims an interest relating to the property or transaction  
that is the subject of the action and that person is so situated that the  
disposition of the action may impair or impede that person's ability to protect  
that interest, unless that person's interest is adequately represented by one  
or more of the existing parties."

Furthermore, the  
court may allow a nonparty to intervene in an action upon timely application  
"if the person has an interest in the matter in litigation, or in the success  
of either of the parties, or an interest against both." (Code Civ. Proc., §  
387, subd. (d)(2).) "Intervention will generally be permitted if: '(1) the  
proper procedures have been followed[,] (2) the nonparty has a direct and  
immediate interest in the action[,] (3) the intervention will not enlarge the  
issues in the litigation[,] and (4) the reasons for the intervention outweigh  
any opposition by the parties presently in the action.'" (Accurso v.  
In-N-Out Burgers (App. 2023) 313 Cal.Rptr.3d 51, 61, quoting City and  
County of San Francisco v. State of California (2005) 128 Cal.App.4th 1030,  
1036.)

A nonparty who  
wishes to intervene shall petition the court for leave to intervene by noticed  
motion or ex parte application. (California Code of Civil Procedure § 387(c).)

Additionally, the petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which the interventions rests. (Ibid.) Lastly, the petition for leave to intervene must be timely. (Id. § 387(d).)

III.

#### DISCUSSION

Great American seeks to intervene on behalf of SRHT because (1) Great American has a direct and immediate interest in the litigation pursuant to the insurance policy it issued to SRHT since Great American may be liable to satisfy a judgment against SRHT and (2) Great American's interests cannot be protected by existing parties to this action. Great American contends given that on October 31, 2024, SRHT filed for Chapter 11 bankruptcy, on April 10, 2025, a Resignation for Agent for Service of Process resigned for SRHT, and bankruptcy proceedings against SRHT are ongoing, SRHT has failed to meaningfully participate in its defense.

The Court finds Great

American is entitled to intervention. "An insurer's right to intervene in an action against the insured, for personal injury or property damage, arises as a result of Insurance Code section 11580." (Reliance Ins. Co. v. Superior Ct. (2000) 84 Cal.App.4th 383, 386.) An insurer "has a direct and immediate interest in the litigation, because it may be required to satisfy any default judgment entered against" its insured. (Id. at p. 387.) "Generally speaking, an insurer should be allowed to intervene in an action against its insured when the insurer may be required to satisfy any judgment entered against the insured and when the insurer's intervention will not enlarge the issues in the case." (Executive Risk Indem., Inc. v. Jones (2009) 171 Cal.App.4th 319, 334.)

Here, Great

American has a right to intervene because as SRHT's insurer pursuant to a commercial liability policy (see Ohrablo Decl., ¶ 2), Great American will be potentially liable for a judgment entered against SRHT in this action, given that SRHT has failed to participate in this matter due to the ongoing bankruptcy proceedings.

Without Great

American being permitted to intervene, it will be impaired or impeded from its

ability to adequately represent its interest, especially given that Great American may be collaterally estopped from asserting relevant issues of legal liability and damages in a subsequent action brought by plaintiff under Insurance Code Section 11580(b)(2). (Siena Ct. Homeowners Assn. v. Green Valley Corp (2008) 164 Cal App.4th 1416, 1424) [“[A] person seeking intervention must also show that he or she is so situated that the disposition of the action may as a practical matter impair or impede that person's ability to protect that interest.”] There is also no indication that Great American's prospective intervention would enlarge the issues in this case because it is merely intervening on behalf of Great American, who is already a party to this action, and therefore is potentially liable and would assert the same defenses that its insured would have asserted.

Seeking mandatory

intervention must also be timely. (Lofton v. Wells Fargo Home Mortgage (2018) 27 Cal.App.5th 1001, 1012 [Under Code of Civil Procedure section 387(d)(1), “a party's proposed intervention must be timely”].)

“Timeliness is

determined by the totality of the circumstances facing would-be intervenors, with a focus on three primary factors: ‘(1) the stage of the proceeding at which an applicant seeks to intervene; (2) the prejudice to other parties; and (3) the reason for the delay.’ ” “ [D]elay in itself does not make a request for intervention untimely.’ ” When mandatory intervention “is sought, because ‘the would-be intervenor may be seriously harmed if intervention is denied, courts should be reluctant to dismiss such a request for intervention as untimely, even though they might deny

the request if the intervention were merely permissive.’ ” (Crestwood Behav. Health, Inc. v. Lacy (2021) 70 Cal.App.5th 560, 574.)

The Court acknowledges Plaintiff's

argument that Great American was made aware of SRHT filing for Chapter 11 bankruptcy on October 31, 2024 and of a Resignation for Agent of Service of Process resigning for SRHT on April 10, 2025. (See Angelo Decl., ¶¶ 2, 4.) However, Defendants were only served with the summons and complaint on February 3, 2026, the trial date is set for June 30, 2028, and the case remains at the initial discovery stages. Great American's intervention also will not require Plaintiffs to restart discovery or reserve pleadings. The Court does not find that Plaintiffs have demonstrated any genuine prejudice.

Plaintiffs cited authority is also inapposite. Plaintiffs cite Royal Surplus Lines Ins. Co. v. Ranger Ins. Co. (2002) 100 Cal.App.4th 193, 200, which states that “[g]enerally, an insurer may not be joined as a party-defendant in the underlying action against the insured by the injured third party.” However, Great American is not joining as a party-defendant. Great American is merely intervening on behalf of SRHT, who is the insured and is already a party in this case.

Lastly, Great American has met the procedural requirements set forth in California Code of Civil Procedure Section 387, including providing a Proposed Answer in Intervention. (Angelo Decl., ¶ 5, Ex. 4.)

IV.  
CONCLUSION

Based on the foregoing, Great American's motion to intervene is GRANTED.

Dated this 28th  
day of August 2026

Hon. Gary  
D. Roberts

Judge  
of the Superior Court